

AFFIDAVIT OF SERVICE

State of Florida

County of

MANATEE

Twelfth Judicial Circuit

Colonial Manor MHC Holdings, LLC
Plaintiff / Petitioner,

vs. CARMEN ROSARIO NIEVES
AND ANY UNKNOWN TENANTS
Defendant/Respondent

Case No. 2023-CC-1095

For: William C. Price, III Esquire
522 12th St. N.
Bradenton, FL 34205

Received by George Hooper on 3-3-23 at 11:45 (A.M.) P.M.

Evictions Summons/Residential, Complaint seeking Eviction
Damages and Other Relief, Demand for Payment of Lot Rental
Amount, Civil Cover Sheet. to be served on:

CARMEN ROSARIO NIEVES AKA ROSARIO CARMEN NIEVES:
900 9th AVENUE EAST, LOT #53 PALMETTO, FL 34221

Subpoena was served on: CARMEN ROSARIO NIEVES, in accordance with Florida State Statute 48.031 (1)(A).

I, George Hooper, being duly sworn, depose and say that on 3-4-23 at 11:10 (am) pm I:

Individually served by delivering a true copy of the **ORIGINAL**

Eviction Summons/Residential, Complaint seeking Eviction Damages
and other Relief, Demand for Payment of Lot Rental Amount,
Civil Cover Sheet with the date and hour of service endorsed there on by me, to:

CARMEN ROSARIO NIEVES, at his / her usual place of Abode,

accepted by POSTED ON DOOR, and informed said person of the contents therein, in compliance with state statutes.

Description of Person left with:

Age: _____ Gender: M F Race: _____ Height: _____ Weight: _____ Hair: _____ Glasses: Y N

I ACKNOWLEDGE that I have no interest in the above action, and have legal and proper authority in the jurisdiction in which this service was made. Under penalty of perjury, I declare that I have read the foregoing and that the facts stated therein are true.

Signed on 3-6-23

George Hooper
George Hooper EPS 1013

ROC 3-3-23
11:45 AM

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2023-CC1095

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s)

TO: CARMEN ROSARIO NIEVES a/k/a
ROSARIO CARMEN NIEVES
900 - 9th Avenue East, Lot #53
Palmetto, Florida 34221

3-3-23
12:15 PM
NO ANSWER
White Baich in court
NO TAG.

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC, to require you to move out of the place where you are living for the reasons given in the attached complaint.

You are entitled to a trial to determine whether you can be required to move, but you MUST do ALL of the things listed below. You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reasons(s) must be given to the clerk of the Court at the Manatee County Courthouse, Post Office Box 25400, Bradenton, Florida, 34206.
- (2) Mail or give a copy of your written reason(s) to:

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Fax: (941) 747-3730

Primary E-Mail: Pleadings@wcpricelaw.com
Attorney for Plaintiff

- Complaint & summons
- evicting, damages +
- other relief
- Demand for payment
- Get Rental Amt.
- Civil cover sheet

3-4-23
NO ANSWER
POSTED ON
DOOR
11:10 AM

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

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- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.
- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2023-CC

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	CARMEN ROSARIO NIEVES and ANY UNKNOWN TENANT(s)

THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on 2/27, 2023.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By: 
Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete días laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion sisu audiencia tribunal es menos de siete días: si usted tiene una incapacidad de oir o hablar llame al 711.

If you cannot afford an attorney, contact Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org, or Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org. If you do not qualify for free legal assistance or do not know an attorney, you may call an attorney referral service (listed in the telephone book) or contact the Florida Bar Lawyer Referral Service at (800) 342-8011.

NOTIFICACION DE DESALOJO/RESIDENCIAL

A:

SIRVASE LEER CON CUIDADO

Usted está siendo demandado por _____ para exigirle que desaloje el lugar donde por los motivos que se expresan en la demanda adjunta. Usted tiene derecho a ser sometido a juicio para determinar si se le puede exigir que se mude, pero **ES NECESARIO** que haga TODO lo que se le pide a continuación en un plazo de 5 días (no incluidos los sábados, domingos, ni días feriados) a partir de la fecha en que estos documentos se le entregaron a usted o a una persona que vive con usted, o se colocaron en su casa.

USTED DEBERA HACER LO SIGUIENTE:

- 1) Escribir el (los) motivo (s) por el (los) cual (es) cree (es) cree que no se le debe obligar a mudarse. El (Los) motivo (s) deberá (n) entregarse por escrito al secretario del tribunal en el Edificio de los Tribunales de Condado de Manatee, 1115 Manatee Ave. West, P.O. Box 25400 Bradenton, FL 34206.
- 2) Enviar por correo o darle su (s) motivos por escrito a:

(Demandante/Abogado del Demandante)

DIRECCION:

- 3) Pagarle al secretario del tribunal el monto del alquiler que la demanda adjunta reclama como adeudado, así como cualquier alquiler pagadero hasta que concluya el litigio. Si usted considera que el monto reclamado en la demanda es incorrecto, deberá presentarle al secretario del tribunal una moción para que el tribunal determine el monto que deba pagarse. Si usted presenta una moción, deberá adjuntarle a este cualquier documento que respalden su posición, y enviar por correo o entregar una copia de la misma al demandante/abogado del demandante.
- 4) Si usted presenta una moción para que el tribunal determine el monto del alquiler que deba pagarse al secretario del tribunal, deberá comunicarse de inmediato con la oficina del juez al que se le haya asignado el caso para que programe una audiencia con el fin de determinar el monto que deba pagarse al secretario del tribunal mientras el litigio este pendiente.

PRECAUCION: Cualquier pago de alquiler pagado al Secretario del Tribunal debe ser remitido en efectivo o transgiro y debe ser acompañado con el costo de registro del Secretario del Tribunal que es lo siguiente: 3% del los primeros \$500.00 y 1.5 % del balance encima de los \$500.00. Pago debe ser remitido a Angelina Colonnese, Clerk of Circuit Court.

SI USTED NO LLEVA A CABO LAS ACCIONES QUE SE ESPECIFICAN ANTERIORMENTE EN UN PLAZO DE 5 DIAS LABORABLES A PARTIR DE LA FECHA EN QUE ESTOS DOCUMENTOS SE LE ENTREGARON A USTED O A UNA PERSONA QUE VIVE CON USTED, O SE COLOQUEN EN SU CASA, SE LE PODRA DESALOJAR SIN NECESIDAD DE CELEBRAR UNA AUDIENCIA NI CURSARSELE OTRO AVISO.

AVISO: Si usted es una persona con una incapacidad que necesita cualquier acomodación en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provisión de cierta ayuda. Favor de contactar al Manatee County Jury Office, P.O.Box 25400, Bradenton, FL.34206 (941) 741-4062, dentro de siete días laborables antes de su audiencia tribunal o atediantemente al recibir esta notificación si su audiencia tribunal es menos de siete días: si usted tiene una incapacidad de oír o hablar llame al 711

CITATION D'EVICITION/RESIDENTIELLE

Vous êtes poursuivi par _____ pour exiger que vous évacuez les lieux de votre résidence pour les raisons énumérées dans la plainte ci-dessous.

Vous avez la droit à un procès pour déterminer si vous devez déménager, mais VOUS DEVEZ, au préalable, SUIVRE les instructions énumérées ci-dessous, pendant les cinq (5) jours (le Samedi, le Dimanche et les jours fériés non compris) à partir de la date quand ces documents ont été donnés à vous ou à la personne habitant avec vous ou ont été affichés à votre résidence.

LISTE DES INSTRUCTIONS À SUIVRE

1. Enumérer par écrire les raisons pour lesquelles vous pensez ne pas avoir à déménager. Elles doivent être remises au clerc du tribunal à Manatee, 1115 Manatee Avenue West, P.O. Box 25400, Bradenton, FL 34206.
2. Envoyer ou donner une copie au: (Plaignant/Avocat du Plaignant) _____
3. Payer au clerc du tribunal le montant des loyers dus comme établi dans la plainte et le montant des loyers dus jusqu'à la fin du procès. Si vous pensez que le montant établi dans la plainte est incorrect, vous devez présenter au clerc du tribunal une demande de justice pour déterminer la somme à payer. Pour cela vous devez attacher à la demande tous les documents soutenant de votre position et faire parvenir une copie de la demande au Plaignant/Avocat du Plaignant.
4. Si vous faites une demande de justice pour déterminer la somme à payer au clerc du tribunal, vous devez immédiatement prévenir le bureau de juge qui présidera au procès pour fixer la date de l'audience pour décidera quelle somme doit être payée au clerc du tribunal pendant que le procès est en cours.

AVERTISSEMENT: Aucun montant au clerc du tribunal doit être payé avec de l'argent, une chèque de caissier ou un mandat et doit être accompagné par le montant des frais d'Enregistrer du Clerc de 3% de la premier \$500 et 1.5% de la balance sur \$500. Les chèques ou les ordres d'argent doit être écrit à Angelina Colonnese, Clerk of Circuit Court.

SI VOUS NE SUIVEZ PAS CES INSTRUCTIONS A LA LETTRE DANS LES 5 JOURS QUE SUIVENT LA DATE QUAND CES DOCUMENTS ONT ETE REMIS A VOUS OU A LA PERSONNE HABITANT AVEC VOUS OU ONT ETE AFFICHES A VOTRE RESIDENCE, VOUS POUVEZ ETRE EXPLUSE SANS AUDIENCE OU SANS AVIS PREALABLE.

ATTENTION: Si vous êtes une personne avec une incapacité qui a besoin d'assistance pour participer dans ce procès, vous avez droit à assistance sans frais à vous. Veuillez contacter le Manatee County Jury Office, P.O. Box 25400, Bradenton, FL 34206 ou téléphoner a 941-741-4062 pendant sept (7) jours d'affaires de votre recette de ce citation d'éviction ; si vous avez les difficultés de parole ou d'ouïe, veuillez téléphoner 711.